

1 ENGROSSED SENATE
2 BILL NO. 1684

By: Frix of the Senate

3 and

4 Bashore of the House

5
6 An Act relating to motor vehicles; amending 27A O.S.
7 2021, Section 2-7-404, which relates to licenses for
8 highway remediation and cleanup services operators;
9 updating statutory reference; requiring certain
operators to have certain insurance coverage;
updating statutory language; and providing an
effective date.

10
11
12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 27A O.S. 2021, Section 2-7-404, is
14 amended to read as follows:

15 Section 2-7-404. A. To be licensed pursuant to ~~this act~~ the
16 Oklahoma Highway Remediation and Cleanup Services Act, a person,
17 firm, corporation, or other entity shall meet the following
18 requirements:

19 1. Principal business facilities are located within ~~Oklahoma~~
20 this state;

21 2. Tow trucks are registered and licensed in ~~Oklahoma~~ this
22 state; and

23 3. ~~Owner~~ The owner is a resident of ~~the State of Oklahoma~~ this
24 state or the service is an Oklahoma corporation.

1 B. No operator or employee of any operator shall be permitted,
2 allowed, or caused to solicit business or engage in highway
3 remediation and cleanup services without the operator first having
4 obtained from the Department of Environmental Quality a license to
5 operate a highway remediation and cleanup service. The license
6 number shall be displayed, in conformance with rules of the
7 Department, on both sides of every vehicle operated by the highway
8 remediation and cleanup service. This section shall not apply to
9 the ~~Oklahoma~~ Department of Transportation or the Oklahoma Turnpike
10 Authority.

11 C. The license fee required by this section shall be in lieu of
12 the motor carrier filing fee as required in Section 165 of Title 47
13 of the Oklahoma Statutes. It shall not be necessary for any
14 operator to prove public convenience and necessity to obtain such
15 license, and the Department shall issue such license without public
16 hearing. The fee for such license shall be Ten Thousand Dollars
17 (\$10,000.00).

18 D. All licenses shall expire on the last day of the calendar
19 year and may be renewed annually at a cost of One Thousand Dollars
20 (\$1,000.00) upon application to the Department as prescribed by
21 rule. No license fee shall be refunded in the event that the
22 license is suspended or revoked.

23 E. No operator or employee of any operator shall be permitted,
24 allowed, or caused to solicit business or engage in highway

1 remediation and cleanup services without the operator first having
2 obtained at least Three Million Dollars (\$3,000,000.00) of liability
3 insurance coverage. Proof of such coverage shall be submitted to
4 the Department of Environmental Quality at the time of the
5 application for a license or renewal of such license.

6 F. The Department is authorized to issue notices of violation
7 and compliance orders and to suspend, revoke, or refuse to issue or
8 renew the license of an operator when it finds the licensee or
9 applicant has not complied with or has violated any of the
10 provisions of ~~this act~~ the Oklahoma Highway Remediation and Cleanup
11 Services Act, or any rules adopted by the Board. A suspension shall
12 be for a period of time deemed appropriate by the Department for the
13 violation. An operator whose license has been revoked may not apply
14 for one (1) year. Any suspended or revoked license shall be
15 returned to the Department by the operator. An operator whose
16 license is revoked by the Department shall be required to pay an
17 additional fee of Ten Thousand Dollars (\$10,000.00) for
18 reinstatement if such reinstatement is authorized by the Department.

19 ~~F.~~ G. The Department shall keep a current list of highway
20 remediation and cleanup service operators licensed pursuant to ~~this~~
21 ~~act~~ the Oklahoma Highway Remediation and Cleanup Services Act and
22 forward such list to the Department of Public Safety for
23 distribution to wrecker service operators licensed by the Department
24 of Public Safety. The Department of Environmental Quality shall

1 update such list regularly to delete highway remediation and cleanup
2 service operators whose licenses have been suspended or revoked.

3 ~~G.~~ H. Fees or fines collected pursuant to the provisions of
4 this section shall be remitted to the State Treasurer to be
5 deposited in the Department of Environmental Quality Revolving Fund.

6 SECTION 2. This act shall become effective November 1, 2026.

7 Passed the Senate the 25th day of March, 2026.

8
9 _____
10 Presiding Officer of the Senate

11 Passed the House of Representatives the ____ day of _____,
12 2026.

13
14 _____
15 Presiding Officer of the House
16 of Representatives
17
18
19
20
21
22
23
24